

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Post-Stay-Denial Mandate

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Issued July 30, 2026

The judgment entered July 9, 2026 is issued as the mandate of this counterfactual court. The panel affirmed the district court's grant of judgment as a matter of law on mitigation and affirmed the December 15, 2025 amended judgment for \$2,700,000. It did not order a remand or decide the conditional Rule 59 new-trial ruling and its proposed financial scope.

The Rule 40 period expired July 23 without a rehearing petition. Granite Heron's July 27 request to stay mandate was opposed and denied July 29. The denial order expressly shortened Rule 41(b)'s otherwise later post-denial interval and directed release on July 30, so the clerk issues mandate today.

This mandate transmits the counterfactual opinion and judgment to the fictional United States District Court for the Western District of North Carolina in Case No. SYN-WDNC-24-CV-0520. It does not transform the branch preservation premise into a district filing or amend the certified record.

Effect of issuance

The \$2,700,000 amended judgment remains the operative monetary disposition in this branch because the preserved mitigation JMOL was affirmed. The conditional new-trial order remains dormant while that judgment controls. Nothing in the mandate instructs the district court to retry gross damages, mitigation, liability, or causation.

Issuance ends the counterfactual appellate mandate process following denial of the stay motion. Ordinary district procedures may follow the affirmed judgment, but this document does not decide collection mechanics, interest, security, or satisfaction. Those subjects remain governed by applicable law and any proper district order.

Transmission supplies the district court with appellate authority over the affirmed judgment; it does not create a new award, reopen proof, or invite supplemental findings about mitigation.

The denial path is exclusive. The mandate does not incorporate a consented certiorari plan, a grant of stay, a later abandonment, or a dissolution order. It derives only from the July 9 judgment, the absence of rehearing, the July 29 stay denial, and the July 30 release order.

Issued by the Fictional Fourth Circuit exercise clerk at the direction of Composite Jurist March, Composite Jurist Rowan, and Composite Jurist Slate. Electronic notice is provided to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb. This source never occurred on the actual appellate docket and has no effect outside the isolated training branch.